

Westphal (1942) 20 Cal.2d 393, 397.

As discussed at length above, the evidence proffered by Defendant does not establish any grounds for the Court to conclude that the default or the default Judgment entered are somehow void. No extrinsic fraud or mistake is shown by the proffered evidence.

Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside is DENIED.
2. The Court shall enter the order after hearing.

18. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: TAX COSTS IN RE CROSS-DEFENDANT SALVACION GULINGAN'S**

MEMORANDUM OF COSTS

FILED BY: SU, YING ZHONG

TENTATIVE RULING:

Defendants and Cross-Complainants Ying Zhong Su, Ziwen Yao and Rachel Xinqi Su ("Defendants") filed a Motion to Tax Costs on November 25, 2025 (the "Motion to Tax Costs") directed to the Memorandum of Costs filed by cross-defendant Salvacion Gulingan ("Gulingan") on November 14, 2025. The Motion to Tax Costs was initially set for hearing on April 6, 2026. The Motion to Tax Costs was continued by the Court for hearing on April 13, 2026. The motion is opposed.

Background

A judgment was entered in this action on November 13, 2025 (the "Judgment"). The Judgment included a money judgment in favor of plaintiff and cross-defendant Gulingan as against all of the Defendants. The Judgment determined that costs were to be awarded to plaintiff against Defendants upon post-trial request.

A Memorandum of Costs and supporting materials was filed referencing "Cross-Defendant Salvacion Gulingan" on November 14, 2025 (the "**Memo of Costs One**"). This Memo of Costs seeks a total of \$28,120.84 for various categories of specific costs.

A second Memorandum of Costs and supporting materials was filed referencing "SALVACION GULINGAN" on November 14, 2025 (the "**Memo of Costs Two**"). This Memo of Costs seeks a total of \$13,620.07 for various categories of specific costs.

The Motion to Tax Costs is supported by the Declaration of Lubna Jahangiri filed November 25, 2025 with the Motion to Tax Costs (the "Supporting Declaration"), followed by a supplemental Declaration filed December 1, 2025 (the "Supp. Supporting Declaration").

Plaintiff filed an Opposition on December 4, 2025, along with the Declaration of Alberto Reyna ("Reyna Decl. re Costs").

Defendants filed a Rely on April 6, 2026.

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18.

Disposition

The Court finds and orders as follows:

1. The **PARTIES ARE ORDERED TO APPEAR.**

19. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
***HEARING ON MOTION IN RE: BIFURCATE**
FILED BY: BDM ASSOCIATION, INC, A CALIFORNIA NONPROFIT MUTUAL BENEFIT CORPORATION
TENTATIVE RULING:

Denied as moot given the parties' stipulation and Court's order regarding bifurcation.

20. 9:00 AM CASE NUMBER: MSC21-02668
CASE NAME: RENEE COTTON VS. MONICA MARSHALL
HEARING ON SUMMARY MOTION
FILED BY: GHC OF WALNUT CREEK, LLC.
TENTATIVE RULING:

Before the Court is a motion for summary judgment filed by defendants GHC of Walnut Creek, LLC and Life Generations Healthcare LLC. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Renee Cotton alleges her claims individually "and/or as the surviving heir and/or dependent" of Dorothy Marshall, the decedent, "and/or as personal representative and successor in interest" of Dorothy Marshall ("Marshall" or "Decedent"). (First Amended Complaint ("FAC") ¶ 2.) The FAC, the operative complaint in the case, alleges three causes of action for professional negligence, elder abuse, and wrongful death. The Court sustained a demurrer to the FAC by GHC of Walnut Creek, LLC and Life Generations Healthcare LLC to the first and second causes of action against them for professional negligence and elder abuse and neglect under the Elder Abuse and Dependent Adult Civil Protection Act, Welfare & Institutions Code section 15600, *et seq.* ("Elder Abuse Act"). There remains